

discussion, have to be released unconditionally, i.e., remain at liberty whether the discussion succeeded or failed. The release of other political prisoners would be a matter for the Coalition Government itself, if it were formed.'

para. 17 of the Memorandum reads:

'To summarise, I recommend:—

- (i) that His Majesty's Government adopt, as the aim of our policy in India, the establishment in the near future of a Coalition Government of party leaders at the Centre.
- (ii) that the scheme for the establishment of such a Government be as outlined in my draft invitation (Annexure A);
- (iii) that the time when I should ask for definite Cabinet approval to my making an appeal on these lines be left to my judgment, and that in the meantime I be authorised to make a statement on the lines of Annexure B.'

para. 2 of Annexure A reads:

'The first step towards a solution is, I firmly believe, a constructive partnership between the leaders of the great Indian political parties—particularly the Congress and the Muslim League—for the remainder of the war, on the footing that the principles of the new constitution and the method of making it remain open to discussion. It may indeed prove that in the friendly atmosphere of a working partnership that discussion might make useful progress.

How can such a partnership be formed? Surely by the formation of a Coalition Government at the Centre—a Government of political leadership. There are three immediate tasks before any Government in India to-day:—

- (i) the prosecution of the war against Japan to a successful ending;
- (ii) the regulation of our internal economy so that the strain and suffering imposed by total war are reduced to a minimum;
- (iii) the planning of post-war reconstruction not only in industry but in the wider economic and social fields.

These tasks are of the highest importance, and should inspire all of us—British and Indians alike—to greater efforts than we have ever made before. If, while we are performing them, we find that we can make constructive proposals about the principles of the new constitution and the method of making it, I have no doubt that our views would carry great weight both with the Indian people and with His Majesty's Government. But I cannot make the solution of the constitutional problem an essential task of the Coalition Government without raising issues so complicated as to make the formation of such a Government difficult if not impossible. My hope is that

a Government of party leaders, co-operating primarily in administrative tasks, might in fact make an agreed contribution to the solution of the constitutional problem.

The Coalition Government I have in mind would consist of recognised party leaders, who would be selected by me in accordance with an agreement to be reached at the discussion proposed below.'

para. 3 of Annexure A reads from sub para. (8):

'(8) The constitutional settlement must be based on agreement between the main elements in India's national life. There can be no question of any main area in British India in which Muslims are predominant being coerced into acceding to a constitution which they are not prepared to accept, any more than there can be any question of coercing Indian States into accession.

(9) There must meanwhile be a communal truce. Attempts by the communities to manœuvre for position can only prejudice our war effort and our hopes of a constitutional solution.

If we are all prepared to accept and observe these conditions in letter and spirit, I believe we can do more for India in two years than in ten of Round Table Conferences. If we are not, then the present arrangements must continue until times are more favourable. The first and absolutely essential requirement of India is a Government that can and will govern. The present Government is capable of governing, and if we cannot find a Coalition Government, must continue.'

and para. 4 of Annexure A reads:

'I now put to you two plain questions:—

- (a) Are you prepared to co-operate in the formation of a Coalition Government for the purposes and on the conditions outlined above? and
- (b) If so, would you be willing to take part in a discussion at Viceroy's House to prepare a definite plan **with a view to coming to agreement on the formation of such a Government?**

With regard to (a), I ask you to remember that this is not a mere repetition of the "Cripps Offer." That offer dealt primarily with the method of settling the new Constitution. My plan leaves this question of method entirely open, subject always to the main condition laid down in paragraph 3 (8) of this letter.

You are being asked to co-operate in the formation of a Coalition Government for British India, in the first instance for the performance of administrative tasks which require political leadership. There is no question of any constitutional commitment by any party at this stage.

As regards (b), I enclose a list of the persons to whom this letter is being sent. Those of them now in detention would, **after notifying me of their willingness to take part in the discussion on the conditions laid down above**, be released unconditionally to take part in the discussion. The discussion itself must be secret—with no announcements and no communication with the outside world until final conclusions are reached. While it continues, I hope that those taking part in it will accept the hospitality of my house. **The discussion would have to cover the willingness or otherwise of the party leaders to form a Coalition Government on the conditions laid down above; the distribution of portfolios; and the recommendation to me of the names of possible members.** I do not myself intend to take part in it, but shall be available to help if I am wanted, and will provide a competent secretarial staff. I am satisfied that we cannot proceed at all unless the representatives both of the Congress and of the Muslim League are prepared to take part, with the sincere intention of carrying out the plan if they possibly can. I am also satisfied that a meeting larger than that contemplated by me would have little chance of success.'

136

The Marquess of Linlithgow to Mr Jinnah

MSS. EUR. F. 125/125

VICEROY'S CAMP, SIMLA, 23 September 1943

Dear Mr. Jinnah,

Thank you very much for your letter of the 15th September¹ in reply to my letter of September the 7th.² As you say I did not think it necessary to put any special marking on my letter to you, the correspondence between us being personal in character and no suggestion having been made by you that you were anxious or might be anxious to publish any reply from me. I appreciate what you say in your letter, but I should prefer that the correspondence should remain as personal between us and should not be given to the Press.

2. As I am on this subject I might add that I understand that His Highness the Maharaja of Kashmir has now appointed a commission to consider and report upon the whole question of "Reforms" in the State.

Yours sincerely,
LINLITHGOW

¹ No. 115.

² No. 99.

137

*Mr Amery to the Marquess of Linlithgow**MSS. EUR. F. 125/12*

PRIVATE AND SECRET

INDIA OFFICE, 23 September 1943

I made a statement on the food question in the House this morning¹ and had to face a real barrage of supplementary questions. It is characteristic that those in the House who are most clamorous for Indian self-government were also this morning even more clamorous for the immediate overriding of the Provinces by the Centre. I trust I struck a just mean between pointing out the extent of Provincial responsibility in the matter and making it clear that we are not going to hesitate about intervening from the Centre if necessary. Anyhow, I see no reason to fear any serious Parliamentary trouble if in connection with this food crisis we may find ourselves compelled either to introduce Section 93, or, preferably, the more moderate extension of the Governor's powers suggested by Rutherford. Meanwhile, Rutherford seems to be handling the situation with courage and vigour and Suhrawardy also would, judging at least by Reuters, seem to be playing up.

2. Meanwhile, the Chiefs of Staff have considered Auchinleck's telegram² and weighed in with a really strong memorandum³ to the Cabinet which I have followed up with another⁴ of my own. These two papers, together with the impression created by the attitude of the House this morning, ought to have some effect on the War Cabinet when it meets to consider the matter tomorrow. Even Winston, if still unsympathetic, may at any rate realise the necessity for action on a more substantial scale than he has hitherto contemplated; but I don't see any prospect of the million and a half tons that your Long-term Committee have recommended.⁵

3. In the meantime, in connection with the general anti-inflation campaign, I have had some talk with Chester Beatty of the Diamond Syndicate and of the big South African copper mining interests and have suggested to him that India might at this moment provide a very good market in which not only to unload diamonds, but also to unload mining and other attractive shares. He took quite keenly to the suggestion and I am going to talk it over further with him at dinner tonight. I am not sure that almost the best import that I could send to India at this moment might not be a small covey of really plausible stock-brokers looking out for speculative clients with money to burn!

4. Poor Kingsley Wood's sudden death⁶ has deprived us of a reasonably sympathetic Chairman of the India Finance Committee which deals with this

¹ *Parl. Debs.*, 5th ser., H. of C., vol. 392, cols. 394-400.² No. 102.³ No. 119.⁴ No. 132.⁵ See No. 123.⁶ On 21 September.

problem. If Winston should decide to move Grigg from the War Office to the Exchequer that would really be helpful, because after all he does understand the Indian situation and has been very helpful on the committee so far. I should not be nearly so happy if his choice fell on Bracken, who knows nothing about the position, is by nature cocksure, and, like Cherwell, more concerned to please Winston than anything else. The Office has prepared some admirable and very detailed papers⁷ bearing on all the problems and on what India has done and might perhaps be encouraged to do. The kind of suggestions that may still emerge from the committee may be an increase of the Excess Profits Tax and of the Income-tax in the middle income ranges; more generally, also, something in the nature of a reduction in Indian war production. Whether anything of that sort can really be done at the same time as India is asked to help with the South-East Asia campaign seems questionable. Anyhow, it is going to be a real uphill fight to prevent the whole situation from running away with us before the next twelve months are out. But I dare say, as with the food situation, when things look critical enough both the War Cabinet and the Americans may begin to revise their notions of what they can do in order to help and may weigh in with much larger quantities of bullion to help things out.

5. In that connection Kisch tells me that while the Americans were prepared to let us have 20 million ounces of silver straightaway for currency purposes and were not prepared to fix any monthly figure, they would undoubtedly on any good case being made, find as much more silver as currency purposes required. I am not sure how far the need for actual coin may not be as much responsible for village hoarding as anything else, and if so I have no doubt you can make another case for coming back to the charge before many months are out.

6. I have just cabled⁸ to you about the War Cabinet decision⁹ to make a real effort to get together a Prime Ministers' conference for January. For some reason which I cannot quite make out, Attlee is so afraid of Prime Ministers running out at the last moment, or thinking this to be a formal Imperial Conference, that he vigorously opposed the idea of India being included. I pointed out not only that since the last War India has attended on the same footing as the Dominions all inter-Imperial gatherings as well as Geneva, &c., but that in 1921 when such a meeting of Prime Ministers was convened the Indian representatives also attended and that it was called a "Conference of Prime Ministers and Representatives of the Dominions, the United Kingdom and India". Besides, I urged that practically all the questions to be discussed affecting both the war and the post-war situation are of vital interest to India, while many of them, e.g. economic questions, civil aviation, &c., are within the recognised sphere of full Indian responsibility. In the end the Cabinet decided to dodge the situation by having the Indian representatives here already, preferably some

weeks beforehand, and inviting them to certain joint meetings with the Prime Ministers, but not altering the conference as one of Prime Ministers only. I suggested that it might be the other way round, i.e. that the conference should be on the 1921 basis, but that there might be subjects on which the Prime Ministers wished to meet without the Indian representatives, just as Cabinet here has not a few meetings at which neither the Indian Representatives nor Bruce, the Australian, have attended. I don't know whether you think it worth while raising objection on principle at this stage, or whether the matter might not be left until a little nearer the actual date. My own impression is that the Dominion Prime Ministers would raise no objection to what I would consider a preferable arrangement and I may take an opportunity of discussing the matter with Smuts, who is expected here quite shortly.

[Para. 7, on staff for Lord Wavell's extra-statutory duties, omitted.]

8. Wavell's speech to the Pilgrims¹⁰ has had a very good reception indeed here, though, as you feared,¹¹ it has raised some exaggerated hopes in some quarters. The *Glasgow Herald* has for some reason or other been critical and impatient about India for some time past. Wavell's other short speeches and his personal appearance[s] have gone down very well everywhere. I don't suppose he will make another speech of any consequence, however, until he gets his farewell send-off at a Government Dinner on the 6th. Winston will be in the Chair and it will be interesting to know what kind of a speech he will make.

[Para. 9, on Sir Aurel Stein's projected visit to Afghanistan; para. 10, on a rumoured cause of Sir J. Herbert's illness; and para. 11, on the reception given to a contingent of the Fourth Indian Division, omitted.]

⁷ L/F/7/687.

⁸ No. 134.

⁹ No. 133.

¹⁰ See No. 126, note 1.

¹¹ See No. 126.

138

The Marquess of Linlithgow to Mr Amery

Telegram, MSS. EUR. F. 125/25

IMMEDIATE

SIMLA, 24 September 1943, 5.45 pm

PERSONAL

Received: 24 September, 5.45 pm

No. 372-S.C. Following telegram No. 166, dated the 23rd September, from Governor of Bengal is repeated:—

Begins. Thank you for message of September 22nd.¹ We have now sufficient stocks, mainly wheat and wheat products, piled up in Calcutta for one month's

¹ Informing him of the passage through India of a Chinese Goodwill Mission to Britain. MSS. EUR. F. 125/43.

reserve for city, rice is only about 8,000 tons. Stevens is finding it difficult to force Bajra, of which we have about 12,000 tons, into consumption. Bookings from the Punjab direct to districts of wheat products now being made, and total quantities being received just at present are in advance of programme. If this can be kept up there is some chance of us winning through without present deaths [*sic*]. Present rate in Calcutta fifty a day mostly among the immigrants from outside. No reliable information as to deaths in districts. Nobody can give me any accurate figures but I estimate we must import at least two lakhs of tons of food stuffs in the next three months and realise the great difficulty in procuring this in India. Stevens presses for more rice as he anticipates trouble from industry as wheat has to be more and more substituted for rice. Is there any truth in the rumour that Central Government have arranged imports from outside India? Struggle with holders of what rice there is over price control continues but in Calcutta small parcels are being offered at control rate. In 24-Parganas saw myself consignments of *aus* paddy being sold at control rates straight from boats but that is no guarantee of retailers' behaviour.

2. Relief Commissioner appointed to ginger up District Officers and help them with advice and orders. Figures given by Revenue Department of persons being fed daily are mofussil eight lakhs forty thousand, greater Calcutta one lakh eighteen thousand. Have not yet got Ministry to (group omitted). Have not yet forcibly removed destitute immigrants from Calcutta to outside camps possibly due to pre-occupation with Assembly which was a riot yesterday. Today there are cut motions on judicial budget² over Chief Justice's remarks³ about Fazlul Huq.

3. Other matters are also dealt with dilatorily, for example, Stevens' staff. I think Ministry would hate to lose their jobs. Have I your permission to hint that there are bones beneath the glove? Section 126-A could be used over rationing if necessary as Food Department is supplying our needs. Reuters asked unofficially for advice whether they could cable home today's editorial in *Statesman*.⁴ I refused to act as censor.

[*Para. 4, on the impossibility of District Officers taking part in savings drive, omitted.*] *Ends.*

² 'cut motions on judicial budget' deciphered as '(? agitated) motions on judicial (corrupt group)'.

³ In a judgment delivered late in August 1943, the Chief Justice of the Calcutta High Court described some letters sent by Mr Fazlul Huq to a District Magistrate trying a looting case as 'interfering with the course of justice'. By the action, the Chief Justice added, Mr Huq had broken his oath of office and 'the clear violation of the oath of office branded a man as unfit for public office'. L/P&J/8/652.

⁴ On the food situation and headed 'Reflections on Disaster'.

139

War Cabinet W.M. (43) 131st Conclusions, Minute 1

L/E/8/3322: ff 188-9

Those present at this meeting held in the Prime Minister's Room, House of Commons, S.W. 1, on 24 September 1943 at 3 pm were: Mr Churchill (in the Chair), Mr Attlee, Mr Anthony Eden, Sir John Anderson, Mr Ernest Bevin, Mr Oliver Lyttelton, Mr Herbert Morrison

Also present during discussion of item 1 were: Field Marshal Viscount Wavell, Viscount Cranborne, Mr Amery, Sir James Grigg, Sir Archibald Sinclair, Lord Leathers, Lord Woolton, Mr Harcourt Johnstone, Mr Ralph Assheton, Air Chief Marshal Sir Charles Portal, General Sir Alan Brooke, Vice-Admiral Sir Neville Syfret

SHIPPING

Indian grain requirements

(Previous Reference: W.M. (43) 111th Conclusions, Minute 1)¹

At their Meeting on 4th August the War Cabinet had considered the request of the Government of India for the shipment of 500,000 tons of wheat between September 1943 and February 1944 to relieve the acute shortage of food in India; and had authorised the Minister of War Transport to arrange for 100,000 tons of barley to be sent to India from Iraq and for 50,000 tons of wheat to be sent from Australia to Colombo to await instructions there.

The War Cabinet now considered Memoranda by the Chiefs of Staff and the Secretary of State for India (W.P. (43) 407 and 411)² asking that the position should be reconsidered in view of the continued deterioration of the food situation in India.

The Chiefs of Staff endorsed the view of the Commander-in-Chief, India, that it was of the highest importance, from the strategical point of view, that the Government of India should receive all possible aid in dealing with the food situation; and pointed out that, if the position continued to deteriorate, the efficient prosecution of the war against Japan by forces based on India would be gravely jeopardised.

The S/S for India in his Memorandum said that famine conditions were developing in the industrial areas in India, particularly in Bengal. He outlined the long-term measures which were being taken to deal with the unsatisfactory economic position in India; but he explained that these could not take effect in time to mitigate the difficulties which seemed certain to arise before the end of the year. These could only be met by the early despatch of additional supplies

¹ No. 71.

² Nos. 119 and 132.

of food grains to India, and he urged the War Cabinet to review their earlier decision and to give a firm assurance that 500,000 tons of cereals would be shipped to India before March 1944.

THE VICEROY-DESIGNATE supported the request made by the S/S for India. He said that more than a year ago, when Commander-in-Chief in India, he had found it necessary to make the strongest representations on the Viceroy's Executive Council regarding the need for increasing the supplies of food available in India. The shortages had been such that it had been necessary to reduce the rations of the Indian Army and the Army's food reserves had at one time fallen to a very low level. The position appeared to be even worse at the present time; and there was a grave risk that military operations would be jeopardised if sufficient food were not made available, not only for the Army but also for the industrial populations on whose efforts our military operations depended.

THE MINISTER OF WAR TRANSPORT said that, although the shipping situation generally had been eased by the recent diminution in sinkings, this did not make it easier to relieve India's immediate needs; for it would not be possible to work additional ships into positions from which they could lift grain for delivery in India before the next Indian harvest. The 50,000 tons of wheat which the War Cabinet had previously authorised him to move to Colombo was already being loaded; and shipment of the 100,000 tons of barley from Iraq could begin at the rate of 20/30,000 tons a month, as soon as the Ministry of Food had finally determined the price. (THE MINISTER OF FOOD indicated that this would be settled within the course of the next few days). The only means by which he could make additional supplies available was to ship a further 30,000 tons of barley from the stocks which were being built up in the Middle East with a view to supplying the irregular forces operating against the enemy in the Balkans, and to divert another 30,000 tons of wheat and flour which was not [now] being sent to the Middle East to augment those stocks. If these additional measures were authorised, he would be able to ship a total of 210,000 tons of food grains to India by the end of the year. The result would be, however, to reduce substantially the stocks which we had been trying to accumulate in the Middle East for the supply of the Balkans; and he saw little prospect of being able to build up those stocks again before the end of the year.

In discussion attention was drawn to the disadvantages of diminishing the stocks which were being accumulated for possible use in the Balkans, since these were already far smaller than we could wish. At the same time it was recognised that India's needs were urgent and there seemed to be no other source from which they could be supplied. It was felt, however, that not more than a maximum of 50,000 tons should be withdrawn from these stocks.

THE S/S FOR INDIA pressed that some assurance should be given to the Government of India regarding shipments in the first quarter of 1944.

The view of the War Cabinet was, however, that at this stage we should concentrate on shipments up to the end of 1943, and should review the position again in the light of the Indian harvests. Meanwhile, any further supplies that might become available should be shipped only as far as the Middle East. From there they could either be sent forward to India, or stored for use in the Balkans, according to the relative needs of the two areas at the end of the year.

The War Cabinet's Conclusions were as follows:—

- (1) The Minister of War Transport should aim at shipping a total of 200,000 tons of food grains to India by the end of 1943. This would be made up of the 150,000 tons authorised by the War Cabinet at their meeting on 4th August and a further 50,000 tons to be withdrawn from the stocks already accumulated in the Middle East, or *en route* for the Middle East, for the supply of the Balkans.
- (2) The position should be reviewed again at the end of the year in the light of the Indian harvests.
- (3) Meanwhile the Minister of War Transport should take any opportunity that offered of shipping further supplies of food grains to the Middle East so that they would be available in 1944, either for onward shipment to India or to augment the supplies which were being accumulated for the Balkans.
- (4) The S/S for India should inform the Government of India that it would be out of the question for us to arrange for the import of anything like 1,000,000 tons of food grains annually into India. Every effort must therefore be made to remedy the long-term situation by internal measures in India.

I40

Mr Amery to the Marquess of Linlithgow

Telegram, L/P&J/8/652: ff 257-60

IMMEDIATE

INDIA OFFICE, 25 September 1943, 5 pm

Received: 26 September

22028. Your telegram of the 20th September, 2089-S.¹ I shall be glad to learn² results of examination of suggestion for amendment of Section 57. I have every sympathy with Rutherford's desire to have his hand strengthened in a very difficult situation and am anxious to help. But subject always to further consideration when you telegraph again I confess that I am not at present greatly attracted to the suggestion of an amendment of S. 57 to widen its scope to extent suggested by Rutherford.

¹ No. 124.

² 'learn' deciphered as 'communicate'.

2. Section 57 was of course introduced to meet the different situation created by a terrorist menace and the underlying presumption was that the Governor would have at his disposal sources of information not available, and which he could not make available, to Ministers. That does not hold at any rate in regard to the supply and distribution of food, when all the factors are or should be known to the Ministry. I should not be influenced by Parliamentary difficulties in securing the amendment if it were clearly essential and it might be that the difficulties would not be formidable in view of the acute interest and anxiety displayed by the House in the food situation in Bengal. But it seems to me that the amendment would amount to a very clear admission by Parliament that they are convinced of the incompetence of the Bengal Ministry in a field peculiarly pertaining to Ministers and indeed of the dubious worth of Provincial autonomy in time of crisis. The consequences would I fear seriously prejudice the development of Provincial self-government.

3. Further the practical merits of the suggestion seem to me very doubtful. The mere enactment of an amendment empowering Governor to act in his discretion in cases of grave emergency with specific reference to Bengal food situation (in effect to take civil supplies wholly out of Ministerial sphere) and of course very much more so the use of such new powers by the Governor, would in my surmise be likely to precipitate resignation of the Minister and probably the whole Ministry with the consequence that the Governor would be forced into Section 93 by a course that would be held to be more provocative than that discussed in my telegram of the 9th September, 20541.³ I recognise that if by amendment proposed Governor were enabled to take civil supplies into his own hand in his discretion he could control Department more directly and effectively than by a repeated use of his individual judgment under Section 52(1)(a). (I assume that in light of Section 50(3) Rutherford would not hesitate to judge that special responsibility under Section 52(1)(a) was attracted).⁴ But the outcome I feel would be that he would find himself without a Ministry or an alternative Ministry to carry on the general administration.

4. Having regard to the indications that the present troubles in Bengal cannot be cured save by co-ordination with all-India action initiated by the Central Government I incline to the view that the proper course is action under Section 102 or 126A or both. If Section 126A were brought to bear the need for compliance by the Bengal Administration would then attract the Governor's special responsibility under Section 52(1) (g). I note from paragraph 3 of Rutherford's 166 repeated in your 372-S.C.⁵ of 24th September that his mind too seems to be moving in this direction. This course also might provoke resignation by the Ministry and lead to a Section 93 situation but would at any rate flow clearly from provisions of Act and be less open to criticism as deliberate measure to torpedo Ministry.

5. If, however, view prevails that nothing will meet the case but amendment to give Governor powers comparable to those of Section 57, I feel that to amend Section of such particular character to make its provisions applicable to famine emergency would be incongruous and that insertion of entirely new *ad hoc* section would be preferable.

³ No. 104.

⁴ 'attracted' deciphered as 'intention'.

⁵ No. 138.

I41

Mr Amery to the Marquess of Linlithgow

Telegram, L/E/8/3322: ff 180-1

IMPORTANT
PERSONAL

INDIA OFFICE, 25 September, 7.30 pm
Received: 26 September

No. 22051. Your personal telegram 1742-S¹ of 13th August. Food imports. Matter came before Cabinet again yesterday² in light of your recent telegrams³ and position in Bengal. I urged that you should be given undertaking that 500,000 tons would be imported by March 1944.

2. Cabinet fully appreciate seriousness of Indian position and possible repercussions on military affairs. Shipping position is such however that most they can do at present is to increase the 150,000 tons referred to in my 17601⁴ of 7th August to 200,000 tons. This will be done by diverting 50,000 tons partly barley from stocks built up in or *en route* for Middle East.

3. Position will be reviewed at end of year in light of the Indian harvest position but Cabinet wished me to warn you with reference to report of Gregory Committee⁵ that import of anything like million tons annually is out of the question. Every effort must therefore be made to remedy long term situation by internal measures in India.

¹ No. 78.

² No. 139.

³ See Nos. 121, 125 and 130.

⁴ No. 74.

⁵ See No. 123.

I42

Mr Amery to the Marquess of Linlithgow

Telegram, L/E/8/3322: ff 183-5

IMPORTANT
PRIVATE AND PERSONAL

INDIA OFFICE, 25 September, 7.45 pm
Received: 26 September

1031. My personal telegram 22051.¹ Food Imports. For your own information I should like you to know that in Cabinet discussion I had strong support in

¹ No. 141.

paper² by Chiefs of Staff based on Auchinleck's telegram³ in which military aspects were emphasised. Leathers explained that although reduced sinkings had improved position it was not possible to work ships into positions from which wheat could be carried to India before next Indian harvest. Most he could do this year was to ship additional amounts from M[iddle] E[ast] where a stock is being built up to feed population of S[outhern] Europe, more particularly the formidable guerilla forces in the Balkans which are engaging an ever-increasing proportion of the enemy's forces. As these reserves are essential to operational success, Cabinet would not agree to transfer of more than 50,000 tons as stock is already slender for its purpose.

2. Leathers stated that shipment of 50,000 tons of wheat previously authorised has already been arranged and Iraq barley can be moved at rate of 20/30,000 tons a month when price is settled, which Woolton said would be in the next few days. This figure presumably included shipments to other destinations as well as India. Probable that additional 50,000 tons will include some more Iraq barley.

3. I did not disclose Food Dept. telegram of 22nd September 8001⁴ since I feel sure that if it had been known that it was thought possible on account of the price to dispense with 100,000 tons already promised, any case for increases would have been brushed aside. I trust that telegram is not final view of G. of I.

4. If you think it wise to make public announcement on basis of present decision please consult me as to terms.

² No. 119. ³ No. 102.

⁴ Stating that Iraq barley was likely to cost at least ten rupees a maund more than the wholesale price of Indian barley and its sale in India would necessitate a government subsidy of some 27,500,000 rupees. Since the amount of barley promised would provide only a very limited solution to Indian food difficulties, the value of the transaction would be out-weighed by unfortunate publicity implications. L/E/8/3316: f 212.

I43

The Marquess of Linlithgow to Mr Amery

Telegram, MSS. EUR. F. 125/25

IMMEDIATE

SIMLA, 26 September 1943, 4.15 pm

Received: 26 September, 4.45 pm

No. 391-S.C. Rutherford's telegram No. 166 of 23rd September which I repeated to you under my No. 372-S.C.¹ I have replied to his paragraph 3 as follows:—

Begins. Your paragraph 3. I find it a little difficult to advise with confidence. My own estimate would coincide with yours, viz. that Ministry do not want

to lose their jobs. On the other hand we have got to be careful not to get into a Section 93 situation as result of their disappearing before we are ready for it or before we are satisfied that there is no other way out. I appreciate the great restraint and caution which you have shown in dealing with this difficult situation so far, and I have every confidence in your judgment. I think I must leave it to you to decide whether now that you have begun to get to know these people and that you are getting the situation in hand it is wise to bring more pressure to bear or to take rather a stiffer line on specific items in the light of what I have said above about the necessity for avoiding a crisis that could reasonably be imputed to us. I should have thought that the very strong criticism that is now appearing in Home press would by itself have made Ministers more sensitive and more apprehensive of criticism if they fall down under the present emergency, and that that would strengthen your hand. I would therefore if I were you use my own judgment and discretion, and you may be certain of my support. If there is any specific proposition at any time of this nature on which you think my advice will be of help please telegraph at once. *Ends.*

Rutherford has shown much balance and judgment in handling this business so far, and has been very anxious to avoid rushing things. I have confidence in his judgment, but I think I must leave it to him to play the hand with the knowledge that I shall be prepared to support him. There are of course certain risks in giving him a relatively free hand but I think we must be prepared to take those. I think myself that he has made an excellent showing so far.

¹ No. 138.

I44

The Marquess of Linlithgow to Mr Amery

Telegram, MSS. EUR. F. 125/25

IMMEDIATE

SIMLA, 26 September 1943, 4.35 pm

PRIVATE AND PERSONAL

Received: 26 September, 3 pm

No. 392-S.C. I was delighted to see excellent statement on the food position which you were able to give in the House yesterday¹ and am much relieved to find strong sense of uneasiness in Parliament at the food crisis. I shall be telegraphing to you separately as regards our programme, &c. I would only at this stage again most earnestly beg you, given what is I trust the more favourable atmosphere, to press our request for imports. All the advice that I get coincides in regarding this as the most effective solution. You should know for your own information that my Council are also getting very restive on the subject. They

¹ See No. 137, note 1; the date should be 23 September.

are aware of the terms in which the Chief² and I³ have supported demands for imports and of the negative replies⁴ of His Majesty's Government, and they think it unreasonable that they should be held up to criticism as they are here on the ground that they are doing nothing in this direction and should not be free to say that His Majesty's Government have refused to help. Mudaliar in fact at the last meeting suggested that a formal protest should be addressed by Council to the Cabinet. I was able to head that off. But the point may come up again, and fact that that suggestion should have been made and by Mudaliar is significant.

² See No. 102.

³ See Nos. 39 and 78.

⁴ See Nos. 74 and 141.

I45

Mr Gandhi to the Marquess of Linlithgow

MSS. EUR. F. 125/154, file 103

PERSONAL

DETENTION CAMP, 27 September 1943

Dear Lord Linlithgow,

On the eve of your departure from India I would like to send you a word.

Of all the high functionaries I have had the honour of knowing, none has been the cause of such deep sorrow to me as you have been. It has cut me to the quick to have to think of you as having countenanced untruth, and that regarding one whom, at one time, you considered as your friend. I hope and pray that God will some day put it into your heart to realise that you, a representative of a great nation, had been led into a grievous error.

With good wishes,

I still remain
your friend,

M. K. GANDHI

I46

The Marquess of Linlithgow to Mr Amery (Extract)

MSS. EUR. F. 125/12

PRIVATE AND SECRET VICEROY'S CAMP, SIMLA, 27 September 1943

Your letter of the 15th September¹ has just been received. Thank you very much for it. I dictate a very hasty reply as the bag goes out this afternoon.

2. We have had your telegram² about lotteries and I am glad to think that we are in agreement about this slightly controversial business. I agree with you

that one must give weight to existing circumstances. I am passing on the point you make in paragraph 2 of your letter to Raisman. I am also telling him of your talk with Chester Beatty.

3. Bengal shows signs of reacting to Rutherford's vigorous personality and administrative experience. But it is clear that he is not having too easy a time with Ministers and I feel a good deal of sympathy for some way out, if one could be found short of Section 93. But thinking in closer detail over Section 57 I am bound to say that the difficulties seem to me pretty substantial, and I shall be telegraphing to let you know the advice that I have had from the Reforms Office with which I am disposed to agree. I ought, I think, to mention that a suggestion of this type was made by Jack Herbert himself earlier in the spring and in different circumstances. I did not much like it then and there was not anything like the case for special action that exists at the moment. I send you copy of the letter³ I then sent him which definitely poured cold water on the proposition. But I shall be interested to hear of your own reaction to it. Once Rutherford has established himself in Bengal I dare say that he may be able to take the Ministers with him by showing his teeth a little more, and that we may be able to get over our difficulties without a breakdown. I cannot believe that the Bengal Ministers really want to go out of office and their political enemies in the Province will certainly make the most of it so far as they are concerned if they do.

★ ★ ★

5. Thank you so much for your help about food. The position is very difficult indeed. We are under immense pressure here, and His Majesty's Government are bound to come into the limelight before long over the matter of imports. Indeed I find it difficult, as I write, to know what answer I can advise you to give in the House on this Parliamentary question⁴ about the Mayor of Calcutta's representation, and we cannot much longer clamp censorship down on the extremely acid criticism that is about, or take the responsibility ourselves. It will have to come back on His Majesty's Government. At the same time I am far from satisfied that the Punjab are doing anything like as much as they ought to. I had a long talk with Glancy this morning, but relatively little came out of it, and after it I have sent him a very stiff letter⁵ of which I send you a copy. Nothing less than a very sharp jolt will produce any effect on either Glancy or his Ministers; but I propose to be very direct with his

¹ No. 117.

² 21797 of 22 September welcoming the G. of I's proposal to issue a lottery loan. L/F/7/826.

³ Of 6 May 1943. MSS. EUR. F. 125/43.

⁴ Mr J. Mack had a question down for answer on 11 October 1943 asking whether a recent telegram from the Mayor and Corporation of Calcutta to Mr Churchill on the grave famine situation had contained any specific requests and demands and what action it was proposed should be taken in regard to it. L/E/8/3298.

⁵ No. 147.

Chief Minister when I see him tomorrow. The fact is that no Province in this country is moved in the slightest degree by the sufferings of any other Province, and equally no community has the slightest consideration for the sufferings of any other community. The damaging effect of this present food crisis on the public mind as an indication of the manner in which the responsibility transferred to Provinces under Provincial Autonomy may be employed, I would judge as likely to be substantial.

★ ★ ★

PS.—Looking through my letter to Glancy again, I have, as you will see, taken the name of the Cabinet fairly freely. But there is little else that is likely to make any deep impression here, and I have not the least doubt that what I have said as to the feeling of the Cabinet is in fact justified.

I47

The Marquess of Linlithgow to Sir B. Glancy (Punjab) (Extract)

MSS. EUR. F. 125/92

PRIVATE AND PERSONAL VICEROY'S CAMP, SIMLA, 27 September 1943
My dear Glancy,

I have been thinking over our discussion with Raisman this morning. I must say that I am left with a feeling of very grave disquiet. Before I proceed you should know that I am consulting Rutherford as to whether he would see any objection to some statement by the Central Government about the absorption by reductions of the price of *atta* of any profits that have been made by Bengal over wheat bought at earlier stages from the Punjab and I will of course let you know the result as soon as I hear from him. I am also of course making certain preliminary enquiries of the Food Department.

2. But what disturbs me is that I am under the very strongest pressure from the Cabinet, in this matter, and I am gravely concerned, less about the future of your Ministry, though that of course is much in my mind, than about the good name of the Punjab. We are rapidly reaching a point at which the whole force of public criticism here and at home is going to concentrate on the Punjab, and at which we may have it stated in terms, however reluctant I should be to associate myself with any such suggestion, that the Punjab Ministers, and the Punjab cultivator under the lead of the Punjab Ministers, are engaged in black-mailing the starving peasants of Bengal so as to make inordinate profits at a time when they have already made very substantial profits indeed. I should find it impossible to stand against that criticism. But great harm is already, I am

certain, being done with the Cabinet as well as with the general public to the reputation of the Province and much of the excellent name which the Punjab so rightly won for itself earlier in the war by its contribution to the war is disappearing consequent on the very widely growing and firmly established impression that the Punjab in the most difficult situation that confronts us are disposed to apply only the test of provincial profit. I would ask you to bear that in mind and to give it full weight. I shall put it myself in terms to your Prime Minister when I see him tomorrow and warn him of the very great concern which I feel.

3. I wish, too, that it was possible to get across to your Ministers the fundamental importance of keeping these prices down from the inflationary point of view. It is all very well the Punjab making very substantial profits at this moment. But if these profits meet the fate of the German Mark the Province would be none the better off for having made them. The Cabinet are most seriously concerned, as Raisman told you, about the inflationary position in India, so concerned indeed that they have set up a special sub-committee to examine and handle it.¹ I realise that these economic issues are often difficult of apprehension by Ministers who have not had much previous training in them. But I know that you realise their force fully, and I must look to you to get it across to your Ministers.

¹ See No. 71.

148

The Marquess of Linlithgow to Mr Amery

Telegram, MSS. EUR. F. 125/25

IMMEDIATE

28 September 1943

PRIVATE AND PERSONAL

No. 407-S.C. Your private and personal telegram of 25th September, No. 1031.¹ I am most grateful for your help though I fear we shall have to continue to press our case. I am going into the matter again with my Advisers and will telegraph when I have done so. Meanwhile I have discussed position in relation to Iraq barley with Raisman who has agreed to find the money; though he expresses himself as apprehensive of criticism both of us and of His Majesty's Government if only substantial relief effected is barley at £40 a ton.

2. I saw Glancy yesterday and urged on him most strongly the necessity for better co-operation on the part of the Punjab. I followed this up with a pretty stiff letter² copy of which went to you by the bag of 27th. I am, this morning, seeing Khizar Hayat, and will let you know the result.

¹ No. 142.

² No. 147.

149

*The Marquess of Linlithgow to Mr Amery**Telegram, MSS. EUR. F. 125/25*

IMPORTANT

SIMLA, 29 September 1943, 8.15 pm

Received: 30 September, 1.15 am

No. 420-S.C. I again saw Glancy and his Premier (separately) on 28th September. I put it very straight to Khizar Hyat that individuals in the Punjab Ministry, by the type of propaganda they had indulged in through the districts in favour of holding for a rise, carried a very grave responsibility for the present reluctance of the cultivator to sell at a reasonable price, and that it was vital to the good name of the Punjab which had suffered greatly already owing to its attitude over food to remove as early as possible suggestions now frequently made that the Punjab was holding the starving population of Bengal to ransom in the hope that prices might rise. I added that whatever mistakes there might have been in the past—and I did not deny that mistakes there had been—our business now was to concentrate on the future, and that I must look to him and to his colleagues to co-operate actively. It appears that no instructions have yet been issued by the Punjab Government to Revenue Officers to concentrate on getting wheat out, and nothing has been done by them in that way save exhortation in general terms by the Premier to the National War Front. I told the Premier and also Glancy that I must have early and categorical orders to Revenue Officers on this matter and that the terms of those orders would be in the minds of most people the test of the degree of sincerity of the Punjab co-operation. I quite recognised that these measures might be unpopular and that the cultivator was probably concerned to make as much as he could out of the situation: but any unpopularity involved must be faced. The Premier made the point that the Punjab cultivator had had a bad time in the past and it was very hard that he should suffer now. I said I could not accept that view as an adequate excuse and that in any event he should bear in mind that if as the result of severe inflationary position developing¹ consequent on great rise in food prices as the result of the Punjab peasant's refusal to part, whatever savings or profits he might make would go up in smoke.

2. I have of course informed² Glancy of the course of my conversation with his Premier and have urged him most strongly to get his team to pull along and give us some results.

¹ Presumably this should read 'if severe inflationary position developed'.

² MSS. EUR. F. 125/92.

150

The Marquess of Linlithgow to Mr Amery

MSS. EUR. F. 125/25

IMMEDIATE

SIMLA, 29 September 1943, 7.55 pm

PERSONAL

Received: 30 September, 12.30 am

No. 421-S.C. My telegram of 20th September, No. 2089-S.¹ Section 57. I have now had the advice of my Reforms Commissioner² who points out that it is not quite clear whether Rutherford has in view solution of food problem or that Governor in his discretion should be given power to take over any branch of the provincial administration if, to quote Section 57, "he thinks that the circumstances of the case require him to do so".

2. He points out that primary responsibility for provincial administration rests on the Ministry except in matters in which the Governor acts in his discretion.³ Not only in view of the present emergency created by the war but even of the situation created by the food problem, Governor's special responsibility is attracted in regard to all aspects of the provincial administration. He has undoubted right to overrule his Ministry and if they do not acquiesce in the decision of the Governor it is open to them to resign.

3. Reforms Commissioner doubts whether Rutherford's position would be better were he given power in his discretion to take over any branch of the provincial administration at will. Section 57 deals with revolutionary activities which are more or less a self-contained subject and could be dealt with by taking over law and order. Food problem however cannot be dealt with on those lines since it runs through the whole scheme of provincial administration, and finance, public health, transport, distribution, production, are all affected. If such powers were taken, chances are that Ministry would resign. If they did not risk of grave friction could not be overlooked. If they do resign we might as well have gone to Section 93 straightaway. On the other hand if the range of power assumed by the Governor is limited it will not solve the problem.

4. Menon's final conclusion is that if Ministry fails to discharge its primary responsibility in respect of provincial administration and thereby creates an emergency, straightforward course is for the Governor to assume administration of the province under Section 93. He thinks that there would be more public support for such a course in those circumstances than for an amendment of the Act which might be criticised as superfluous (in view of the Governor's powers in his individual judgment⁴ and of Section 93) and as reactionary since it would be a permanent provision not contemplated by the authors of the Act,

¹ No. 124.

² Mr V. P. Menon.

³ and ⁴ See No. 49, note 4.

diminishing the scope of provincial autonomy and constituting a sword of Damocles⁵ over the heads of the Ministers.

5. I think that there is much force in Menon's points. On the other hand you fully realise how reluctant I am to consider our having to go into Section 93 if we can help it, though there may be no remedy for it in the long run. It would help me greatly in reaching my own conclusion if I could have your reactions when I will telegraph further.

6. Above was drafted before receipt of your telegram of 25th September No. 22028⁶ for which I am most grateful. It looks to me as though the objections were on the whole pretty substantial. I doubt in the light of your views and of Menon's if real progress can be looked for this way, and we may have to face up to use of Section 93 if things cannot be managed satisfactorily under the existing machinery. I fully appreciate as you know force of consideration referred to in the concluding sentence of your paragraph 2. But recourse to Section 93 will equally point the same moral. While therefore we may have to abandon this idea, I confess that I should myself do so with reluctance. But I propose to discuss further with Rutherford who is coming here on the evening of the 3rd for a day, and will telegraph again after I have done so. Meanwhile if you have any further comment in the light of my present telegram it would be most welcome.

⁵ A phrase meaning impending evil or danger. Damocles of Syracuse was invited by its Ruler to try the felicity he so much envied. Accepting, he was sat down to a sumptuous banquet, but overhead was a sword suspended by a hair. Damocles was afraid to stir, and the banquet was a tantalizing torment to him.

⁶ No. 140.

151

The Marquess of Linlithgow to Mr Amery

Telegram, MSS. EUR. F. 125/25

IMMEDIATE

SIMLA, 29-30 September 1943, midnight

Received: 30 September, 2 am

No. 430-S.C. Following telegram No. 167 of 28th September from Governor of Bengal is repeated:—

Begins. Ministry has pushed through Budget most speedily and I congratulated Chief Minister on this. Fazlul Huq and his supporters have been playing a thoroughly dirty game trying to organise demonstrations of hungry and blackavise [*sic*] Ministry.

2. As regards clearing destitutes from Calcutta streets Chief Minister wants more time to get private relief bodies and also opposition to co-operate. He is supported by Martin, Relief Commissioner, who is presiding over a conference